Ex Tempore

THE SHERIFF OF ZIMBABWE
versus
WARREN SPENCE
and
JEPHAT CHIFAMBA
and
TINASHE MAPANGA

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 19 March 2026 and 29 June 2026.

Interpleader Proceedings

C Gatahwi, for the Applicant
G Ranganayi, for the 1st and 2nd Claimants
R C A Mapara, for the Judgement Creditor

DEME J: The judgment creditor obtained a judgment in Case No. HCH 2495/23 against Shingirai Albert Munyeza (hereinafter called "the Judgment Debtor"). Consequently, the judgment creditor instructed the Applicant to attach and execute upon the judgment debtor's movable property. The Applicant, acting within the scope of his duties as the Sheriff of Zimbabwe and in execution of the writ in Case No. HCH 2495/23, duly attached the property on 26 November 2025. The Claimants subsequently laid claim to the property which also includes the Ford Focus Registration Number AGE 8094 (hereinafter referred to as the vehicle).

According to the first Claimant, the goods, which are mainly household in nature, attached belong to him with the exception of the vehicle. The first Claimant maintained that he is the owner of the immovable property where attachment took place being Flat Number 7, 35 Arcturus Road, Highlands, Harare. The first Claimant attached the agreement of sale in respect of the immovable property. On this basis, the first Claimant affirmed that he was in possession of the goods at the time of attachment. The first Claimant claimed that he purchased the goods sometime in 2025 where he was allegedly upgrading his furniture. According to the first

Claimant, he is no longer in possession of the receipts for the attached goods. The first Claimant prayed for the release of the attached goods.

The second Claimant claims ownership of the vehicle attached by the Applicant. The second Claimant tendered registration book as proof of his claim. It is the position of the second Claimant that he purchased the vehicle from public auction. The vehicle was parked at the place of attachment on the day of attachment. The second Claimant asserted that the vehicle was used by the Judgment Debtor's wife at the time of attachment following special arrangements between the second Claimant and the Judgment Debtor. The second Claimant consequently implored this court to release the vehicle from attachment.

The claims by the Claimants were opposed by the Judgment Creditor. He claimed that the property attached belongs to the Judgment Debtor and not the Claimants. According to the Judgment Creditor, all the property was attached in the presence of the Judgment Debtor's wife. The Judgment Creditor further affirmed that the Judgment Debtor, at the material time, resided at the address of attachment. On this basis, the Judgment Creditor contended that the Judgment Debtor was in possession of the goods at the material time. He further claimed that the presumption of ownership which flows from possession ought to apply. According to the Judgment Creditor, the Judgment Debtor must be presumed to be the owner of the property attached by the Applicant. The Judgment Creditor asserted that the first Claimant failed to prove ownership of the household goods claimed by failing to tender receipts for the purchase of such goods.

With respect to the claim for the second Claimant, the Judgment Creditor maintained that the registration book of the vehicle is not conclusive evidence of the vehicle claimed. He further insisted that the second Claimant failed to tender evidence that the vehicle was purchased at a public auction.

The sole question which exercises my mind is whether the Claimants have, on a balance of probabilities, managed to prove ownership of the goods claimed.

It is a salutary principle that has been established in our jurisdiction that any claimant who claims property through interpleader proceedings must prove ownership of such property on a balance of probabilities. Reference is made to the cases of *Welli-Well (Pvt) Ltd* v *Imbayago and Another*[1] *and A. Raziya Kazi* v *The Sheriff of Zimbabwe and Ors*[2].

Mr. Ranganayi justified the first Claimant's failure to tender receipts. He submitted that not all owners do have receipts for the goods which they purchased. On this basis, he argued that individuals without receipts will risk losing their property upon attachment of such goods by the Applicant. He urged the court not to adopt a stricter standard of proof required in criminal proceedings. He further contended that the first Claimant has managed to prove ownership of the attached goods on a balance of probabilities. Mr. Ranganayi claimed that the first Claimant's version sounds more probable than the Judgment Creditor's version. He also argued that interpleader proceedings are not meant to reward the Judgment Creditor but to protect claimants. However, Mr. Ranganayi conceded that the Judgment Debtor resides at the place of attachment.

Mr. Mapara, in response, submitted that the Claimants must rebut the presumption of ownership which arises from possession. He referred the court to page 14 where it was recorded by the Applicant, in the notice of seizure and attachment, that the Judgment Debtor's wife, Mrs. Munyeza, was present on the day of attachment. Mr. Mapara argued that in the absence of a sufficient explanation, the Judgment Debtor must be presumed to be the owner of the attached goods.

Mr. Mapara drew the attention of the court to paragraph 3 of the second Claimant's affidavit which states that:

> "I am the lawful owner of a Ford Focus Registration number AGE 8094 which is registered in my name. Attached hereto is the Vehicle Registration Book as annexure A. I bought the car a (sic) public auction attached hereto as annexure b."

According to Mr. Mapara, the second Claimant's version of a purchase from public auction is not substantiated by evidence. He further submitted that contrary evidence is on record. Evidence filed by the second Claimant, according to Mr. Mapara, suggests that the

[1] SC 8/21
[2] SC26/22

vehicle was imported. Reference was made to the registration book which reveals that the vehicle was imported from South Africa. Mr. Mapara also referred the court to paragraph 14 of the heads of argument which contradicts paragraph 3 of the second Claimant's affidavits.

In my view, by failing to tender receipts for the claimed goods, the first Claimant failed to prove ownership on a balance of probabilities. Reference is made to the case of *Muzanenhamo* v *Fishtown Investments (Pvt) Ltd and Ors* [3] where MAVANGIRA JA remarked as follows:

> "In *casu* the appellant failed to prove ownership of the property. She did not produce any receipts that pertained directly to the attached property. The invoice related to only three items the nature of which suggests that they could not have been bought for domestic use, being very high end furniture. The first item on the invoice, a Blush marble glass table is not linked to the attached property. The second item, described as Annabelle black leather sofa with cushions, is also not linked to the attached property. While there is a six-piece sofa on the list of property that was attached, the court cannot infer from that alone that it is the Annabelle that is referred to in the list of attached property. The same position pertains to what is described as "Essex deluxe sofa." There is also no connection to the attached property.
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> The invoice was in any event not produced to prove ownership of movables but to prove her residence at the property, yet proof of residence would not suffice because it was possible for the three, the appellant, the second and third respondents to all live there. They all could also be tenants at the premises.
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> Even if the appellant had been found to have been the owner of the immovable property, there was also the possibility that she could have allowed her daughter and the company to operate from the premises. The appellant's statement that she had allowed the third respondent to use her address for purposes of service of documents only does not alter the fact that the given address was in fact the third respondent's *domicilium citandi et executandi*. At law, delivery of any legal notice or document by the other party at the address chosen is considered to be sufficient service and the party who would have chosen the address is deemed to have received the legal notice or document. The party whose *domicilium* is the given address usually has the onus of notifying the other signatory to the agreement of any change in such address. In *casu* no such notification of change of address was done by the second and third respondents. In addition, the Deputy Sheriff was not at any stage pointed to any other address.
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> The attached goods were thus found and attached at the second respondent's address and therefore in its possession. The execution of the writ was based on the acceptance that the premises belonged to the second respondent. It is on this basis that the *onus* fell on the appellant to prove her claimed ownership of the premises. She failed to discharge the onus. This is in

[3] SC8/17.

> accordance with what the court stated in *Deputy Sheriff Marondera v Traverse Investments (Pvt) Ltd & Anor HH11/2003*. In that light the statement by MATIKA J, quoted earlier in this judgment, was not violated."

In *casu*, the Judgment Debtor and the first Claimant have a high likelihood of sharing the same residence. On this reasoning, the first Claimant ought to have tendered more satisfactory evidence which rebuts the presumption of ownership which erupts from possession. In the circumstances, the first Claimant made hollow allegations of ownership. His claim is unmerited and ought to be dismissed.

The second Claimant gave inconsistent versions for the acquisition of the vehicle. In paragraph 3 of his two affidavits which are before the court, he alleged that he purchased the vehicle from the public auction. This version is not corroborated by any piece of evidence. Registration book, as highlighted before, suggests otherwise. According to the heads of argument filed, it was submitted that the vehicle was imported. Reference is made to paragraph 14 which provides that:

> "The registration book produced by the second Claimant reflects that the motor vehicle is an imported vehicle and that it was imported and registered in the name of the second Claimant in 2023. There is no indication in the registration record of any prior local owner, nor transfer history, and no suggestion that the vehicle was ever registered in the name of the Judgment Debtor."

Such incompatible versions do not help the second Claimant to prove ownership of the vehicle on a balance of probabilities. A litigant who harbours an ambition and appetite of falsities risks his or her entire evidence being disregarded by the court. Reference is made to the case of *Leader Tread Zimbabwe (Pvt) Ltd* v *Smith*[4] where the court held that:

> "The defendant deliberately lied and changed his story. It is trite that if a litigant gives false evidence, his story will be discarded and the same adverse inferences may be drawn as if he had not given evidence at all – see *Tumahole Bereng* v *R* [1949] AC 253 and *South African Law of Evidence* by L H Hoffmann and D T Zeffertt (3 ed) at page 472. If a litigant lies about a particular incident, the court may infer that there is something about it which he wishes to hide.

[4] HB131/03.

> *In casu*, I am satisfied that he deliberately lied to mislead the court on the nature of the agreement with plaintiff to escape liability. If the defendant sourced the foreign currency the "illegal route" he deliberately deceived the plaintiff in this regard. In my view, the defendant lied on the question of Mr Kershaw because the defence of agency cannot be sustained. He is lying to try and escape an obligation under the contract."

On this footing alone, the second Claimant's claim must be dismissed. The second Claimant demonstrated to the court that he is a dishonest witness. The two versions testified by the second Claimant cannot happen to be simultaneously authentic. Mr. Ranganayi was not able to reconcile the second Claimant's contradicting versions. He simply submitted that in preparing the heads of argument, he was guided by the documentation filed.

Further, the fact that the vehicle was in the possession of the Judgment Debtor must be interpreted against the second Claimant. Reference is made to the case of *Muzanenhamo* v *Fishtown Investments (Pvt) Ltd and Ors supra*. The second Claimant failed to rebut the presumption of ownership which emerges from possession of goods. The Judgment Debtor, in the absence of satisfactory explanation, must be presumed to be the owner of the vehicle. The second Claimant affirmed that the vehicle was used by the Judgment Debtor's wife following a common understanding between the second Claimant and the Judgment Debtor. This, in my view, must be disregarded as true evidence in light of the negative character demonstrated by the second Claimant. In the premises, the second Claimant failed to prove ownership of the vehicle on a balance of probabilities. The second Claimant's claim must also be dismissed.

On the question of costs, it has been conventionally established that costs follow the outcome. There is no justification why costs must not follow the result. In the circumstances, it is ordered as follows:

A. The claimants' claim to the property listed in the notice of seizure dated 26 November 2025, which was placed under attachment in execution of the order in case No HCH 2495/23, be and is hereby dismissed.

B. The above-mentioned property attached by the applicant be and is hereby declared executable.

C. The Claimants shall pay the judgment creditor's and the applicant's costs of suit.

DEME J …….

V. Nyemba Associates, Applicant's legal practitioners.
IEG Musimbe & Associates, Claimants' Legal Practitioners.
Moyo & Jera Legal Practitioners, Judgement Creditor's Legal Practitioners.